

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Wednesday, June 17, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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24CV-05166	Marie Boyer vs Merced City Tow Service, Inc et al.
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Trial Setting Conference

Appearance required.

25CV-01878	William Mooneyham., et al. vs Steve Mooneyham., et al.
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Demurrer

Defendants' general demurrer to Plaintiffs' third amended complaint is OVERRULED.

On demurrer, the court permits less particularity where the material facts lie more in the knowledge of the defendant, so long as the complaint alleges ultimate facts supporting each element and gives fair notice.

Defendants' demurrer to the first cause of action is OVERRULED.

Here, the third amended complaint pleads the core statutory elements of financial elder abuse. Accordingly, the Plaintiffs allege sufficient facts to constitute a cause of action for financial elder abuse regarding real property.

Defendants' demurrer to the second cause of action is **OVERRULED**.

As with the first cause of action, the second cause of action pleads the core statutory elements of financial elder abuse. Accordingly, the Plaintiffs allege sufficient facts to constitute a cause of action for financial elder abuse regarding personal property.

Defendants' demurrer to the third cause of action is **OVERRULED**.

The Plaintiffs allege sufficient facts to constitute a cause of action for breach of fiduciary duty.

Defendants' demurrer to the fourth cause of action is **OVERRULED**.

The Plaintiffs allege sufficient facts to constitute a cause of action for constructive fraud.

Defendants' demurrer to the fifth cause of action is **OVERRULED**.

The Plaintiffs allege sufficient facts to constitute a cause of action for conversion.

Defendants' demurrer to the sixth cause of action is **OVERRULED**.

The Plaintiffs allege sufficient facts to constitute a cause of action for quiet title.

Defendants' demurrer to the seventh cause of action is **OVERRULED**.

The Plaintiffs allege sufficient facts to constitute a cause of action for unjust enrichment.

Defendants' demurrer to the eighth cause of action is **OVERRULED**.

The Plaintiffs allege sufficient facts to constitute a cause of action for accounting of the trust.

Defendants' demurrer to the ninth cause of action is **OVERRULED**.

The Plaintiffs allege sufficient facts to constitute a cause of action for breach of the trust agreement.

Defendants' demurrer to the tenth cause of action is **OVERRULED**.

The Plaintiffs allege sufficient facts to constitute a cause of action for surcharge of trustee.